

the present defendants' demurrer. Loosely speaking, the two pleadings in this case are largely mirror images of each other, as are the attacks made by the two competing demurrers. It thus appears that at least to a large extent, each side is being systematically inconsistent in its own filings, with arguments in demurrers that would apply equally well to the demurring parties' own complaint or cross-complaint.

The Court accordingly **continues** the upcoming hearing date of February 6 to May 16, 2026, so that if a demurrer to the first amended cross-complaint is filed (as seems likely), the two demurrers can be heard together. If such a demurrer (and/or motion to strike) is filed, it should be set for hearing on the same date.

In the meantime, the Court is of the view that both sides need to see to the consistency of their respective positions. It will not do for a party to plead a cause of action in his or her own complaint, while simultaneously making legal arguments in his or her demurrer that would be equally fatal to the party's own claims. The attorneys are therefore directed to meet and confer as to the legal viability of all of the various claims made in both directions, with a view to a stipulation either to drop nonviable claims, or to drop nonviable demurrers, or some of both. And if the attorneys cannot reach agreement, then each side must file and serve a statement by April 18, explaining how its own attacks on the other side's claims can be squared consistently with its own pleaded claims.

6. 9:00 AM CASE NUMBER: C24-03078
CASE NAME: THALBIR OLI VS. GOVIND SHAHI
***HEARING ON MOTION IN RE: STRIKE CROSS COMPLAINT**
FILED BY: OLI, THALBIR
TENTATIVE RULING:

See line 5.

7. 9:00 AM CASE NUMBER: C25-00444
CASE NAME: KYANI-DEVAREU HARRIS VS. COUNTY OF CONTRA COSTA COURT
HEARING ON DEMURRER TO: COMPLAINT
FILED BY: COUNTY OF CONTRA COSTA
TENTATIVE RULING:

Department 309 (Judge Treat) recuses himself from this case in light of the point that the Court itself is a named defendant in the case. The demurrer is taken **off calendar**, and the case is referred to the Presiding Judge for consideration of a full-bench recusal.